

Court No. - 3

Case :- WRIT - C No. - 55451 of 2014

Petitioner :- Hridesh Kumar & Another

Respondent :- The Paschimanchal Vidyut Vitran Nigam Ltd. & 3 Others

Counsel for Petitioner :- Mithilesh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Rajiv Sharma,J.

Hon'ble Dinesh Gupta,J.

Heard Mr. Mithilesh Kumar Tiwari, counsel for the petitioners, learned Standing Counsel for respondent No.3 and Mr. Pranjal Mehrotra, counsel for the respondent Nos.1 and 2. With their consent, we proceed to hear the matter finally at the admission stage itself.

Counsel for the petitioners submits that the petitioners are the bhumidhar of Khasra Plot No. 196, area 3.4470 hectare, situated at Village Asafabad Chaman, Pargana- Afjalgarh, Tehsil Dhampur, District Bijnor. The residential house and cattle shed of the petitioners are situated upon the plot in question and their family members are residing thereon. In the month of June, 2014, in pursuance to the letter dated 9.6.2014 issued by the Executive Engineer, Vidyut Vitran Khand, Dhampur, Bijnore, respondent No.4-Smt. Sarita Chauhan had started to erect the electric poll upon the plot in question for installation of electricity line to provide new electric connection to the private tubewell of the respondent No.4. Feeling aggrieved, the petitioners have preferred representation dated 22.6.2014 to the Executive Engineer but no heed was paid by the Executive Engineer.

Elaborating his submission, counsel for the petitioners submits that without considering and deciding the petitioners' representation dated 22.6.2014, the respondents are started to install electricity line over the building of the petitioners forcefully and when the petitioners opposed, respondent No.4 and her family members have assaulted the petitioner No.2 and as such, an FIR relating to case crime No. 237 of 2014 under Sections 323,325, 452, 504 IPC at Police Stationi Afjalgarh, District Bijnore, was lodged by the petitioners against the respondent No.4 and her family members. His submission is that inspite of the aforesaid applications dated 22.6.2014 and 2.7.2014 preferred by the petitioners,

the respondents have not stopped the installation of the electricity lines over the building of the petitioners situated in aforesaid bhumidhari plot. Feeling aggrieved, the petitioners have preferred the instant writ petition, inter alia on the grounds that in view of Clause 4.5 (d) of the U.P. Electricity Supply Code 2005, no supply line shall be installed over the property belonging to a third party without obtaining 'No Objection' from third party and in absence of 'No Objection', the licensee may adopt a different route to supply electricity line to the applicant and the applicant shall bear the cost differential.

Per contra, Mr. Pranjal Mehrotra, counsel for the respondent Nos. 1 and 2 submits that the grievance of the petitioners can very well be looked into by the Executive Engineer and since the petitioners have already been preferred representations and as such, he has no objection in case a direction be issued to the Executive Engineer to decide the petitioners' representations dated 22.6.2014 and 2.7.2014.

Considering the peculiar facts and circumstances of the case and also without entering into the merits of the case, we **dispose of** the writ petition finally with a direction to the respondent No.2-the Executive Engineer, Vidyut Vitran Khand, Dhampur, Bijnor, to consider and decide the petitioners' representation dated 22.6.2014 contained in Annexure No. 4, in accordance with law, after affording opportunity of hearing to the petitioners, expeditiously, say, within a period of one month from the date of receipt a certified copy of this order.

Till disposal of the petitioners' representation dated 22.6.2014, the respondents are directed not to pass over the electricity line over the petitioners' plot in question.

Order Date :- 16.10.2014

Ajit/-